

# SENATE . . . . . No. 2148

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## The Commonwealth of Massachusetts

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PRESENTED BY:

***Paul R. Feeney***

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act utilizing apprenticeship programs for career paths in construction.

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PETITION OF:

| NAME:                   | DISTRICT/ADDRESS:          |                  |
|-------------------------|----------------------------|------------------|
| <i>Paul R. Feeney</i>   | <i>Bristol and Norfolk</i> |                  |
| <i>Marcus S. Vaughn</i> | <i>9th Norfolk</i>         | <i>2/13/2025</i> |

# SENATE . . . . . No. 2148

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By Mr. Feeney, a petition (accompanied by bill, Senate, No. 2148) of Paul R. Feeney and Marcus S. Vaughn for legislation to utilize apprenticeship programs for career paths in construction. State Administration and Regulatory Oversight.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act utilizing apprenticeship programs for career paths in construction.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. “Bid” shall mean any bid, proposal, or quote rendered by a contractor at  
2 any level to the public agency or to another contractor for the performance of work on a public  
3 works project.

4           SECTION 2. “Construction contract” shall mean any public works contract as defined  
5 herein with a value in excess of \$1,000,000.

6           SECTION 3. “Public agency” means a department, agency, board, commission,  
7 authority, or other instrumentality of the commonwealth, political subdivision of the  
8 commonwealth, city, town, or by persons contracting or subcontracting for a public works.

9           SECTION 4. “Public works” means the construction, reconstruction, alteration,  
10 remodeling, repair or demolition of any public building or any other public works by a public  
11 agency.

12           SECTION 5(a). Notwithstanding any general or special law to the contrary, a public  
13 agency shall require, as a condition of bidding on a construction contract for public works, that  
14 all construction managers, general contractors and subcontractors at any level at the time of  
15 bidding maintain or participate in a bona fide apprentice training program as defined under G.L.  
16 c. 23, §§11H and 11I for each apprenticeable trade or occupation represented in their workforce  
17 that is approved by the Division of Apprentice Standards of the Executive Office of Labor and  
18 Workforce Development, and must register all apprentices with the Division and abide by the  
19 apprentice to journeyman ratio for each trade prescribed therein in the performance of any work  
20 on a public works project; provided further, that in the event the public agency does not receive  
21 any bids from a qualified and responsible bidder maintaining or participating in such an  
22 apprentice training program, the public agency may resolicit bids for that category of work  
23 without the requirements of this section. This section does not require the program to qualify as  
24 an employee welfare benefit plan under the Employee Retirement Income Security Act of 1974  
25 (ERISA), 29 U.S.C. §§1001-1461.

26           (b) Any bidder for a public works project that does not maintain or participate in a bona  
27 fide apprentice training program as defined under G.L. c. 23, §§11H and 11I for each  
28 apprenticeable trade or occupation represented in their workforce that is approved by the  
29 Division of Apprentice Standards of the Executive Office of Labor and Workforce Development  
30 shall not be regarded as a responsible and eligible bidder.

31           SECTION 6. The provisions of this act are severable and if any provision is determined  
32 to contravene state or federal law, the remainder of this act shall remain in full force and effect.